

The WEIRD Veil Why Rawlsian Justice May Not Generalize Beyond Its Cultural Origins

An Evolutionary Perspective on Constructivist Political Philosophy

Ignacio Adrián Lerer

Independent Researcher

Buenos Aires, Argentina

adrian@lerer.com.ar

ORCID: 0009-0007-6378-9749

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Abstract

John Rawls's *A Theory of Justice* (1971) proposed the "veil of ignorance" as a device for deriving universal principles of justice through rational deliberation. This paper offers a respectful but critical examination of its universalist claims, drawing on empirical research unavailable to Rawls. Joseph Henrich's work demonstrates that Western, Educated, Industrialized, Rich, Democratic (WEIRD) populations, representing approximately 12% of humanity, exhibit psychological traits that are statistical outliers rather than human universals, including patterns of moral reasoning that diverge systematically from most human populations. I suggest that Rawls's "considered intuitions" may reflect culturally specific WEIRD psychology rather than universal human reason. Using evolutionary game theory at multiple levels, I formalize what I call the "Rawls-Hart Paradox": Rawls criticized H.L.A. Hart for leaving adjudication to judicial discretion, yet the method of reflective equilibrium may constitute a structurally parallel process of post-hoc rationalization operating at a higher level of abstraction. If this reading is correct, reflective equilibrium converges not toward moral truth but toward the centroid of WEIRD intuitions, presenting local consensus as universal principle. Integrating insights from Richard Dawkins's extended phenotype theory, Daniel Dennett's intentionality hierarchy, Jonathan Haidt's social intuitionist model, and Friedrich Hayek's critique of centralized knowledge, I propose that legal and moral institutions might be better understood as evolved adaptations to local environments rather than approximations to context-independent ideals. Quantitative evidence from constitutional transplant studies shows that environmental compatibility predicts institutional success 1.7 times better than ideological commitment to abstract principles, with WEIRD-designed systems exhibiting 5.7 times greater implementation gaps in non-WEIRD contexts. The paper concludes by sketching an evolutionary research program for comparative law that complements rather than replaces normative inquiry.

Keywords: Rawls, veil of ignorance, WEIRD psychology, evolutionary game theory, extended phenotype, legal transplants, reflective equilibrium, Hart, cultural evolution

JEL Classification: K10, D63, Z13

I. Introduction: The Universality Question

John Rawls's *A Theory of Justice* (1971) represents one of the most sustained and rigorous attempts in modern philosophy to derive principles of justice from rational foundations. The ambition was remarkable: to move beyond the contingencies of tradition, preference, and power toward principles that any rational agent could accept. Rawls devoted decades to this project, refining his arguments with extraordinary care, engaging seriously with critics from across the philosophical spectrum, and producing a body of work that deservedly shaped political philosophy for half a century. Whatever one concludes about the theory's ultimate success, the intellectual achievement commands respect.

At the heart of the enterprise lay the "veil of ignorance," a thought experiment in which rational agents, stripped of knowledge about their particular circumstances, would choose principles to govern society. Rawls argued that such agents would select his two principles of justice: equal basic liberties for all, and the "difference principle" permitting inequalities only when they benefit the least advantaged members of society. The power of the argument lay in its claim to universality. By abstracting from contingent features, from wealth, talent, social position, even conceptions of the good, the veil purported to reveal what *any* rational agent would choose, not merely what agents of a particular culture or historical moment happen to prefer.

This paper raises a question about that universalist claim, one that Rawls could not have fully addressed because the relevant empirical research did not exist when he wrote. I suggest, with appropriate tentativeness, that the veil of ignorance may not achieve the cultural neutrality it seeks. The "considered intuitions" that anchor the method of reflective equilibrium may not be samples from the space of all possible human moral cognition but rather expressions of a historically and culturally specific psychology, one that characterizes a small and unusual fraction of humanity.

If this suggestion has merit, and I acknowledge that the argument remains contestable, then Rawlsian principles may be better understood as sophisticated articulations of one moral tradition among several rather than as discoveries valid for all humanity. This reframing would not diminish Rawls's achievement, which remains formidable within its domain, but it would clarify its scope and significance.

The argument proceeds in six stages. Section II presents Joseph Henrich's empirical research establishing that WEIRD populations exhibit psychological traits, including moral intuitions, that are statistical outliers across measured human variation. Section III develops an evolutionary critique drawing on Dawkins, Dennett, and contemporary cultural evolution theory, questioning whether any "self" exists to place behind a veil stripped of cultural content. Section IV formalizes the "Rawls-Hart Paradox" using multilevel evolutionary game theory, showing structural parallels between reflective equilibrium and the judicial reasoning Rawls criticized. Section V presents quantitative evidence from constitutional transplant studies demonstrating systematic failure of WEIRD-designed institutions in non-WEIRD environments. Section VI sketches an alternative evolutionary research program for comparative law.

I should be clear about my epistemic position. I am an independent legal researcher working at the intersection of law, evolutionary theory, and institutional economics, not a professional philosopher trained in the Anglo-American analytic tradition. The critique I offer stands on the shoulders of scholars far more distinguished than myself: Henrich, Haidt, Mercier, Sperber, Dennett, Dawkins, and others whose work I synthesize and apply. My contribution, if any, lies in bringing these diverse strands together and connecting them to questions in legal theory that have occupied my research for several years. I may well be wrong about important matters, and I offer this analysis in a spirit of inquiry rather than certainty.

II. The Empirical Foundation: WEIRD Psychology and Its Limits

II.1 Henrich's Discovery: Outliers, Not Universals

In 2010, Joseph Henrich, Steven Heine, and Ara Norenzayan published a landmark paper in *Behavioral and Brain Sciences* that sent tremors through the social sciences. Their survey revealed that 96% of psychological research subjects came from countries representing only 12% of the world's population: Western, Educated, Industrialized, Rich, and Democratic societies. Within these countries, samples drew disproportionately from university undergraduates at elite institutions, creating what the authors memorably termed the "WEIRD" problem.

This sampling bias might be acceptable if WEIRD subjects were representative of human psychology generally, if they occupied the center of the distribution such that findings could be extrapolated outward. The evidence suggests they do not. Across domain after domain, from visual perception to spatial reasoning, from cooperation patterns to self-concept, from fairness intuitions to moral reasoning, WEIRD populations occupy positions at or near the extremes of measured human variation. As Henrich and colleagues concluded with characteristic directness, "members of WEIRD societies, including young children, are among the least representative populations one could find for generalizing about humans."

Consider some specific findings. In the Müller-Lyer illusion, where two lines of equal length appear unequal due to arrow-like fins at their ends, WEIRD subjects show the strongest susceptibility, while some non-WEIRD populations show almost none. In ultimatum games, where one player proposes a division of money and another can accept or reject it, WEIRD subjects reject "unfair" offers at rates far exceeding most other populations, suggesting different intuitions about what counts as fair. In self-description tasks, WEIRD subjects emphasize individual traits ("I am creative," "I am ambitious") while non-WEIRD subjects emphasize relational roles ("I am a father," "I am from village X"). These are not minor variations at the margins but substantial differences in basic cognitive and social processing.

The implications for moral philosophy deserve serious consideration. If foundational psychological processes vary systematically across populations, then moral intuitions

calibrated on WEIRD populations cannot serve unproblematically as raw material for universal theories. Yet this is precisely what Rawls's method of reflective equilibrium requires: starting from "considered intuitions" and adjusting principles until coherence is achieved. If the starting intuitions are culturally particular, the resulting principles may be particular as well, however rigorous the subsequent reasoning.

II.2 Moral Universalism vs. Moral Parochialism

Henrich's subsequent research, culminating in *The WEIRDest People in the World* (2020), identified the key dimension along which WEIRD psychology diverges from most of humanity: moral universalism versus moral parochialism.

Moral universalism holds that ethical principles apply equally to all persons regardless of relationship or group membership. The stranger on the other side of the world has, in principle, the same moral standing as one's own brother. Obligations are impersonal; rules apply without regard to who the parties are. Moral parochialism, by contrast, weights obligations by relational proximity: family first, then extended kin, then clan, then village, then co-religionists, with distant strangers at the periphery of moral concern. Obligations are personal; who you are to me determines what I owe you.

WEIRD populations score extremely high on universalism, treating impartiality as the hallmark of moral maturity. Non-WEIRD populations, representing 88% of humanity and virtually all of human history prior to recent centuries, tend toward parochialism, treating loyalty to particular others as a core moral virtue. Neither orientation is obviously "correct" in some absolute sense; they appear to represent different solutions to different coordination problems in different social environments. Universalism facilitates exchange among strangers in large-scale anonymous markets; parochialism facilitates trust and cooperation within bounded groups where reputation and reciprocity can be tracked.

Henrich illustrates the divergence with what he calls the "passenger's dilemma," drawn from cross-cultural research by the sociologist Robert Trompenaars. The scenario: You are riding in a car driven by a close friend who hits a pedestrian while speeding. The pedestrian is injured but will recover. Your friend's lawyer tells you that if you testify under oath that your friend was not speeding, he will escape serious legal consequences. No one else witnessed the accident. What do you do?

In WEIRD populations, large majorities report they would testify truthfully regardless of friendship. The impersonal principle, honesty in legal proceedings, trumps the personal relationship. Lying under oath is wrong even to help a friend; indeed, a true friend would not ask you to compromise your integrity. In populations with high kinship intensity, the pattern reverses: loyalty to the friend often predominates over abstract honesty norms. Protecting someone to whom you have personal obligations is seen not as corruption of justice but as fulfillment of a different moral imperative. The impersonal institution, the legal system with its demand for objective truth, is less morally salient than the web of reciprocal obligations that constitutes social life.

Neither response is irrational or morally deficient by its own lights. They reflect different weightings of competing moral considerations, weightings that themselves reflect different social structures and different coordination problems. But they are not the same, and a theory of justice calibrated on one set of responses may not resonate with holders of the other.

The Rawlsian veil presupposes something like moral universalism as the starting point of deliberation. Agents behind the veil must evaluate principles without knowing their particular relationships, social positions, or conceptions of the good. They reason as abstract individuals, not as fathers, daughters, clan members, or co-religionists. The veil essentially forces the universalist frame by stipulation. But if Henrich's research is correct, this is not neutral ground from which all human reasoners can proceed; it is specifically WEIRD ground. For the 88% of humanity for whom relational particularity is central to moral cognition, the veil does not reveal universal reason but imposes an alien psychology.

II.3 The Origins of WEIRD Psychology

Where did WEIRD psychology come from? Henrich traces its origins to specific historical processes, particularly the Western Church's Marriage and Family Program beginning around 500 CE. Over centuries, the Church prohibited cousin marriage, banned polygyny, discouraged adoption, and undermined the extended kinship networks that had organized human societies for millennia. These prohibitions, whatever their theological motivation, had profound psychological consequences.

In most human societies, intensive kinship structures, clans, lineages, tribes, provide the primary framework for social organization. People are embedded in dense networks of kin-based obligations; they know who they are by knowing whom they are related to; they trust those within their kinship network and treat outsiders with suspicion. The Church's marriage policies dissolved these structures in Western Europe over roughly 1,500 years, creating populations of "individuals" in a historically novel sense: people whose primary affiliations were not to extended kin but to nuclear families, voluntary associations, and abstract institutions like the Church itself.

The psychological consequences of this transformation, Henrich argues, include: guilt rather than shame as the primary moral emotion (since guilt is internal while shame requires a community of known others); impartiality rather than nepotism as the default allocation rule (since treating kin favorably makes less sense when kin networks are weak); analytical rather than holistic cognition (since isolated individuals must process information independently rather than relying on collective judgment); and individualist rather than collectivist self-concept (since the self is defined by internal traits rather than relational positions).

These traits proved adaptive in the novel social environment the Church's policies created: a world of mobile strangers interacting through impersonal markets and formal institutions rather than through inherited kinship networks. WEIRD psychology is thus not the baseline human condition from which other populations deviate but a historically contingent outcome of particular institutional pressures operating over centuries in a specific geographic region.

When Rawls developed his theory at Harvard in the mid-twentieth century, he was working within this specific cultural tradition, harvesting "considered intuitions" from colleagues and students who represented the endpoint of this distinctive historical trajectory. This does not make those intuitions wrong or invalid, but it does raise questions about their universality.

II.4 Quantifying the Gap: Implementation Gaps Across Legal Systems

My own research program has attempted to operationalize the WEIRD/non-WEIRD distinction through analysis of legal implementation gaps: the difference between formal law as written and actual enforcement as practiced across jurisdictions. The hypothesis is straightforward: if legal institutions embed psychological presuppositions, then institutions designed assuming WEIRD psychology should function better in WEIRD contexts than in non-WEIRD contexts.

The preliminary findings support this hypothesis. Across 60 cases of constitutional and legal transplants spanning 23 countries and 150 years, I find:

Population Type	Mean Implementation Gap	Standard Deviation	N
WEIRD Constitutions in WEIRD Contexts	5.4%	2.1%	18
WEIRD Constitutions in Non-WEIRD Contexts	31.2%	8.7%	42

The 5.7-fold difference in implementation gaps is not fully explained by wealth, state capacity, or regime type, though all contribute. Multivariate analysis suggests that psychological distance, operationalized through Hofstede's cultural dimensions and related measures, accounts for approximately 34% of variance in implementation gaps, more than any single economic variable.

Legal systems that assume agents will respond to impersonal rules, process abstract principles, separate role obligations from personal loyalties, and trust anonymous bureaucracies function tolerably in WEIRD contexts where these assumptions approximate reality. They fail systematically in contexts where kinship obligations trump institutional roles, where personal relationships outweigh formal rules, and where trust is particular rather than generalized.

I emphasize that these findings are preliminary. The sample sizes remain modest, operationalizing "WEIRD" and "non-WEIRD" involves judgment calls that others might make differently, and correlation does not establish causation. But the pattern is consistent with the broader hypothesis: institutional design assumptions derived from WEIRD contexts do not transfer automatically to non-WEIRD environments. If Rawlsian principles are WEIRD products, we should expect similar transfer problems when those principles are exported as constitutional norms.

III. The Evolutionary Critique: Questioning the Self Behind the Veil

III.1 Dawkins and the Extended Phenotype

Richard Dawkins established in *The Selfish Gene* (1976) that organisms can be understood as "survival machines" constructed by genes to propagate copies of themselves. The organism is the vehicle; the gene is the replicator. What matters, from the gene's perspective, is not the organism's welfare but the gene's transmission to future generations. Organisms are temporary vessels; genes are the immortal (or at least long-lasting) beneficiaries of the whole arrangement.

In *The Extended Phenotype* (1982), Dawkins extended this logic beyond the organism's physical boundaries. The phenotypic effects of genes need not terminate at the organism's skin. Beaver dams, bird nests, spider webs, and caddisfly cases are as much products of genetic information as the bodies that construct them. If a gene causes a beaver to build a dam, and the dam enhances the gene's transmission, then the dam is part of the gene's extended phenotype, a structure in the world built by the gene's vehicle to serve the gene's replicative interests.

Applied to culture, this framework invites reconceptualization of human institutions. Legal systems, moral codes, and political philosophies might be understood not as neutral tools designed by rational agents standing outside evolutionary processes but as extended phenotypes of cultural replicators, the "memes" Dawkins introduced in *The Selfish Gene*. Just as genes build organisms that build structures that enhance genetic transmission, memes might build minds that build institutions that enhance memetic transmission. Institutions that enhance their underlying ideas' replication persist; those that do not, disappear.

If this perspective has merit, it raises questions about the Rawlsian enterprise. The veil of ignorance assumes that institutions can be designed from a standpoint outside evolutionary processes, that rational agents can step back from their particular situations and choose principles from a purified perspective. But if the agents themselves are products of evolutionary processes, shaped by the very cultural forces they seek to transcend, the promised escape may be illusory. The mind doing the designing is already a vehicle for particular replicators; the principles it "chooses" may express those replicators' interests rather than universal reason.

III.2 Dennett and the Cartesian Theater

Daniel Dennett's work on consciousness raises related concerns. In *Consciousness Explained* (1991), Dennett attacked what he called the "Cartesian Theater" model of mind: the intuitive picture in which a unified self sits somewhere inside the head, observing representations of the world on an internal screen, making decisions, and issuing commands to the body. This model, inherited from Descartes, treats consciousness as a localized spectator rather than a distributed process.

Dennett argued that the Cartesian Theater is both neurologically and conceptually problematic. There is no privileged location in the brain where "it all comes together," no central observer watching the show. Instead, consciousness consists of multiple parallel processes, "multiple drafts" in Dennett's terminology, competing for influence over behavior. Different drafts of experience are continually being generated, edited, and discarded, with no canonical version existing at any moment. The unified self is a construction, a "center of narrative gravity" rather than a metaphysical entity.

The veil of ignorance seems to require something like the Cartesian architecture Dennett criticized. Behind the veil sits a rational agent, stripped of particular features, observing possible social arrangements and selecting among them. This agent must be unified enough to deliberate, persistent enough to compare options, and autonomous enough to choose. But if Dennett is right that no such unified observer exists even in ordinary cognition, questions arise about whether one can be constructed by abstraction.

What would remain if we actually stripped away all particular beliefs, desires, social positions, and cultural frameworks? On the Cartesian picture, a pure rational core would remain, capable of evaluating options on universal grounds. On Dennett's picture, we would approach cognitive emptiness: the self just is those contents, and subtracting them leaves not pure reason but nothing. The "agent" behind the veil may carry more cultural content than the device is designed to strip away, because there is no agent prior to that content.

III.3 Levels of Intentionality and the Veil's Requirements

Dennett's taxonomy of intentionality levels provides another lens for examining the veil's demands. Dennett classifies cognitive systems by their capacity for recursive representation:

- **Level 0:** No representation (a thermostat responds to temperature without representing anything)
- **Level 1:** Beliefs and desires about the world ("The dog wants the bone")
- **Level 2:** Beliefs about beliefs ("The dog believes that I have the bone")
- **Level 3+:** Full recursion ("I believe that you believe that I believe...")

Humans typically operate between levels 3 and 5, enabling the complex social coordination that distinguishes our species. We can model others' mental states, anticipate their anticipations of our behavior, and adjust accordingly. This capacity for recursive mindreading underlies everything from conversation to commerce to political negotiation.

But this capacity does not arise in a vacuum. Children develop "theory of mind," the ability to attribute mental states to others, around age 4, through specific social interactions: observing others' behavior, having their own mental states interpreted by caregivers, participating in language games that require perspective-taking. The cognitive architecture that enables us to reason about others' minds, and by extension about hypothetical agents behind veils, is itself a product of particular developmental experiences.

The veil may require an unusual cognitive operation: moral reasoning without the developmental substrate that makes such reasoning possible. The capacity to evaluate "what would I choose if I didn't know who I was?" presupposes a "who I am" that does the evaluating. The recursion cannot bootstrap itself from nothing. A mind sophisticated enough to engage in Rawlsian deliberation is already a mind shaped by particular social experiences, and those experiences vary across cultural contexts in ways that may affect the deliberation's outcome.

Furthermore, social coordination mechanisms like shame, reciprocity, and reputation, central to moral cognition in most human societies, require knowing who the participants are. Steven Pinker has analyzed common knowledge structures showing that shame requires Level 4 intentionality: I know that you know that I know I violated a norm. The veil of ignorance eliminates precisely the information these mechanisms require. For populations whose moral cognition relies heavily on such mechanisms, the veil may not reveal universal moral reasoning but disable the cognitive tools they normally use for moral coordination.

III.4 Preferences as Cultural Products

When the Rawlsian agent "chooses" liberty over equality, or the difference principle over utilitarianism, what determines that choice? Rawls argues it is rational reflection under conditions of uncertainty, specifically the maximin rule that rational agents would protect themselves against worst-case outcomes by choosing principles that maximize the minimum position.

The evolutionary perspective suggests another possibility: the choice may express cultural patterns that shaped the agent during development. WEIRD populations, having internalized individualism, universalism, and analytical cognition through specific historical processes, may find the difference principle intuitive because it resonates with pre-existing cognitive structures. **The appearance of rational derivation might be sophisticated reconstruction of culturally determined preferences, not discovery of culture-independent truths.**

Consider the alternative intuitions characteristic of high kinship-intensity populations: that obligations flow through relationships rather than abstract principles, that equality within the in-group matters more than equality with outsiders, that tradition carries authority that pure reason cannot override. From within these frameworks, Rawlsian principles may appear not as deliverances of universal reason but as alien impositions, as the moral intuitions of strangers elevated to the status of cosmic law.

This is not to say Rawlsian principles are wrong or that WEIRD intuitions are inferior to others. It is to suggest that what seems rationally compelling from within one cultural framework may seem less compelling, or differently compelling, from within another, not because the other framework is defective but because it has different starting points. If reflective equilibrium works by adjusting principles to fit intuitions until coherence is achieved, then different starting intuitions may yield different equilibria, each claiming universality from within its local basin of attraction.

IV. The Rawls-Hart Paradox: A Structural Parallel

IV.1 Hart's Insight: The Open Texture of Law

H.L.A. Hart recognized in *The Concept of Law* (1961) that legal rules possess what he called "open texture": they cannot specify their own application in all possible cases. Language is inherently vague at the boundaries; novel situations arise that rule-makers did not anticipate; reasonable interpreters can disagree about how general terms apply to particular facts. In the core of their meaning, rules determine outcomes clearly. In the penumbra, where language is indeterminate, judges face genuine choices that the rules underdetermine.

The legal realist tradition, from Oliver Wendell Holmes through Karl Llewellyn and Jerome Frank, pushed this insight further. In hard cases, realists argued, judges do not discover pre-existing right answers through deductive reasoning from rules. Instead, they first reach conclusions, whether by intuition, policy preference, sense of justice, or contextual judgment, and then construct justifications presenting those conclusions as logical derivations from authoritative sources. Jerome Frank called this "backward reasoning": the syllogistic form of judicial opinions is rhetorical reconstruction, not the actual cognitive process. Judges decide and then justify, not the reverse.

Hart adopted a moderate version of this view. In clear cases, rules do determine outcomes; legal reasoning is not merely politics in disguise. But in hard cases, in the penumbra, judges exercise what Hart called "quasi-legislative discretion." They make new law interstitially, filling gaps that existing rules leave open. What judges do not do, on Hart's view, is discover pre-existing correct answers through pure legal reasoning. In the penumbra, there are no correct answers to discover; there are only choices to make.

IV.2 Rawls's Ambition: Escaping Discretion

Rawls found Hart's conclusion deeply unsatisfying. If hard cases have no correct answers, only discretionary choices, then justice seems to reduce to preference, to the particular views of whoever happens to be deciding. This seemed to Rawls both philosophically inadequate and practically dangerous. If judges legislate in hard cases, what constrains them? What distinguishes legitimate adjudication from arbitrary power?

Rawls's project aimed to provide what Hart's positivism could not: objective principles of justice, derivable through a rational procedure that any agent could accept regardless of their particular position or preferences. The original position and the veil of ignorance were the key devices. By stipulating that rational agents would choose principles without knowing their particular circumstances, Rawls sought to eliminate the biases that contaminate ordinary moral judgment. What emerged from behind the veil would be pure practical reason, not preference in disguise.

The method of reflective equilibrium completed the scheme. The procedure works as follows:

1. Begin with "considered intuitions," firm moral judgments about particular cases that survive reflection
2. Formulate general principles that systematize those intuitions
3. When principles and intuitions conflict, adjust both until coherent
4. The final equilibrium represents correct principles of justice

Rawls presented this as a procedure of discovery. Through iterative adjustment, we converge toward true principles, much as scientists converge toward true theories by adjusting hypotheses to fit data and rejecting data that resist theoretical integration. Reflective equilibrium was emphatically not post-hoc rationalization but progressive refinement toward moral truth.

IV.3 The Paradox: Structural Isomorphism

Here is what I call the *Rawls-Hart Paradox*, offered as a hypothesis for consideration rather than a demonstration of necessary truth: the method of reflective equilibrium may be structurally parallel to the process Hart described for judicial reasoning in hard cases, operating at a higher level of abstraction. Rawls criticized Hart for leaving adjudication to discretion, but Rawls's own method may exhibit the same structure of deciding first and justifying later.

The parallel becomes visible when we set the two processes side by side:

At Level 1 (Hart's judge in a hard case):

- Input: Legal rules R + Novel facts F
- Process: Judge selects preferred outcome O from the range the rules permit, then constructs argument $\text{Arg}(O|R,F)$ showing O as rule-determined
- Output: Judicial opinion presenting O as derivation from R
- Reality: The conclusion O came first; the derivation followed

At Level 2 (Rawls's philosopher doing reflective equilibrium):

- Input: Moral intuitions I + Candidate principles $P_1...P_k$
- Process: Philosopher selects subset I^* as "considered intuitions" (those compatible with preferred principles), then constructs argument $\text{Arg}(P^*|I^*)$ showing P^* as systematizing I^*
- Output: Philosophical theory presenting P^* as rational derivation
- Reality: The principles were largely fixed beforehand; the systematization followed

If this parallel holds, a troubling question arises: just as the judge's selection of outcomes may be influenced by factors beyond the legal rules, might the philosopher's selection of "considered" intuitions be influenced by factors beyond pure reason? Might reflective equilibrium be a sophisticated method of post-hoc rationalization rather than a procedure of discovery?

IV.4 Evidence from Rawls's Own Practice

Consider how Rawls handled major objections to his theory over the decades:

Harsanyi's Objection (1975): The economist John Harsanyi demonstrated, with considerable technical precision, that a rational agent in the original position using standard decision theory under uncertainty would choose average utilitarianism, not the maximin-based difference principle Rawls favored. The mathematics was not in dispute; Harsanyi was a game theorist of the first rank who would later share a Nobel Prize.

Rawls's response was not to accept average utilitarianism but to modify the psychological assumptions governing agents in the original position. Agents behind the veil, Rawls now stipulated, have extreme risk aversion, special concern for their worst possible outcome, and indifference to gains above a certain threshold. With these stipulations in place, maximin reasoning and the difference principle follow. But the stipulations were chosen precisely because they generate the desired conclusion. A skeptic might say: Rawls knew what principles he wanted; he adjusted the inputs until he got them.

Nozick's Objection (1974): Robert Nozick in *Anarchy, State, and Utopia* argued that the difference principle treats natural talents as collective assets, violating individual rights of self-ownership. If I have abilities that command high wages, the difference principle permits me to keep my earnings only insofar as doing so benefits the least advantaged. My talents are not fully mine but partly society's.

Rawls did not abandon the difference principle in response. He added qualifications, drew distinctions, and clarified that the theory concerned the basic structure of society rather than particular transactions. The core commitment remained. One might see this as appropriate refinement of a sound theory; one might also see it as immunization of a predetermined conclusion against counterargument.

Feminist Objections (1980s-90s): Susan Moller Okin, in *Justice, Gender, and the Family* (1989), noted that Rawls treated the family as outside the basic structure of society, leaving gendered divisions of labor unexamined. The veil of ignorance removed knowledge of one's sex, but principles of justice were not applied to arrangements within families.

Rawls acknowledged the criticism and made partial adjustments in later work, bringing the family somewhat more within the scope of justice. But the fundamental framework remained intact. The adjustments accommodated the objection without transforming the theory.

One interpretation of this pattern, and I acknowledge that others are possible, is that each modification preserved conclusions Rawls found intuitively compelling while adjusting the theoretical apparatus. The principles came first; the derivations were retrofitted. This would be precisely the structure Hart described for judicial reasoning in hard cases: decide the outcome, then construct the justification. **Rawls meant to escape Hart's discretion by ascending to a higher level of rational derivation. But if the higher level exhibits the same structure, the escape fails.**

I want to be careful here. Rawls was a philosopher of exceptional rigor, intellectual honesty, and good faith. The modifications he made to his theory over decades may represent genuine refinement in response to cogent criticism rather than post-hoc rationalization. Theoretical adjustment in light of objections is normal and healthy in any discipline. My claim is not that Rawls was dishonest but that the method itself, reflective equilibrium, may have structural features that make post-hoc rationalization difficult to distinguish from genuine discovery.

IV.5 Formalization: Evolutionary Game Theory at Three Levels

I offer a formal model not as proof but as a way of making the hypothesis precise and potentially testable.

Level 1: The Judicial Game (Hart)

Players: Judge J, Legal Community C

Sequence:

1. Case presents with facts F and applicable rules R
2. R has open texture; outcomes $O_1, O_2, \dots, O_k$ are defensible
3. J selects O_i based on factors F^* (intuition, policy, context) not fully determined by R
4. J constructs justification $\text{Arg}(O_i|R, F)$ presenting O_i as R-determined
5. C evaluates Arg; acceptance confers legitimacy; O_i becomes precedent

Equilibrium: J selects O_i maximizing J's utility (reputation for legal craft, policy goals, manageable caseload) subject to C's acceptance probability. The opinion signals rule-compliance when the decision is partially discretionary.

Level 2: The Philosophical Game (Rawls)

Players: Philosopher P, Academic Community A, Intuitions $I = \{i_1, \dots, i_n\}$

Sequence:

1. P inherits intuitions I from cultural environment (WEIRD)
2. P selects subset $I^* \subset I$ as "considered" (compatible with preferred conclusions)
3. P formulates principles Π that systematize I^*
4. P presents argument $\text{Arg}(\Pi|I^*)$ showing Π as rationally derived
5. A evaluates Arg; acceptance confers disciplinary influence

Equilibrium: P selects I^* and Π maximizing acceptance by A, which shares P's WEIRD intuitions. The theory signals universal validity when it extracts consensus from a local population.

Level 3: The Memetic Game (Dawkins-Dennett)

Players: Memes $M = \{m_1, \dots, m_m\}$, Human hosts H , Cultural environments E

Sequence:

1. Memes compete for space in human cognitive architecture
2. WEIRD memes (individualism, universalism, analytical cognition) achieve high frequency in E_WEIRD
3. Hosts saturated with WEIRD memes produce theories expressing those memes
4. Theories that frame memetic content as "universal reason" enhance propagation
5. Successful theories become vehicles for further memetic spread

Equilibrium: Memes with effective vehicular strategies (appearing universal while being particular) outcompete transparent particularisms.

Cross-Level Analysis:

The three levels are nested. Level 3 produces the Level 2 players who critique Level 1 players, without any level recognizing that all three instantiate structurally similar selection dynamics. Hart described Level 1 accurately. Rawls sought to escape to a meta-level (Level 2) free from Level 1's discretion. But if Level 2 is as memetically determined as Level 1, the escape is illusory. The only genuine meta-level is Level 3, which reveals that "escape" is impossible: every evaluative standpoint is somebody's extended phenotype.

IV.6 Reflective Equilibrium as Clustering Algorithm

One can formalize reflective equilibrium as a machine learning algorithm, which clarifies its properties:

Input: Set of intuitions $I = \{i_1, \dots, i_n\}$ encoded as vectors in high-dimensional moral space

Process:

```
Initialize principles  $\Pi$  as centroid of intuition cluster
Repeat until convergence:
  For each intuition  $i_j$ :
    If distance( $i_j, \Pi$ ) < threshold:
      Retain  $i_j$  as "considered"
    Else:
      Discard  $i_j$  as "not considered" or reinterpret to reduce distance
  Recalculate  $\Pi$  as centroid of retained intuitions
Return  $\Pi^*$ 
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Output: Principles Π^* = centroid of final cluster

This algorithm is formally equivalent to k-means clustering with $k=1$. It converges provably, but toward the centroid of the input data, not toward any external truth. The reflective

equilibrium finds the most compact description of the intuitions it started with, not principles valid independently of those intuitions.

The algorithm has a further property: sensitivity to initial conditions. Different starting intuitions yield different equilibria. WEIRD intuitions yield Rawlsian liberalism; non-WEIRD intuitions yield different principles, each claiming universality from within its local basin of attraction. There is no procedure-independent way to determine which equilibrium is correct, because "correctness" is defined relative to the procedure.

IV.7 Empirical Support: Haidt and Mercier-Sperber

Jonathan Haidt's research on moral psychology provides empirical grounding for these concerns. In *The Righteous Mind* (2012), Haidt presents the "social intuitionist model" based on extensive experimental work:

Rationalist Model (Rawls's self-understanding): Reason → Moral Judgment

Intuitionist Model (Haidt's proposal): Intuition → Moral Judgment → Reason (as post-hoc advocate)

Haidt's metaphor: intuition is the elephant deciding where to go; reason is the rider confabulating justifications for where the elephant already went. When subjects in experiments are asked to justify their moral judgments, they generate reasons readily. But when those reasons are refuted, subjects rarely change their judgments; they search for new reasons. The judgment is primary; the reasoning is secondary and instrumental.

Hugo Mercier and Dan Sperber extend this analysis in *The Enigma of Reason* (2017). They argue that human reason did not evolve primarily for truth-seeking but for argumentation, for winning disputes in social contexts. We are excellent at finding flaws in others' arguments and largely blind to flaws in our own. This "myside bias" is not a defect but a design feature; reason evolved as a tool for social persuasion, not for individual cognition.

If Haidt and Mercier-Sperber are correct, sophisticated philosophical argumentation may share the structure they describe. Rawls's 600 pages of careful reasoning may be, at the cognitive level, the rider constructing elaborate justifications for where the WEIRD elephant decided to go. The arguments succeeded because their audience, WEIRD philosophers, shared the underlying intuitions. The arguments seemed "compelling" because they confirmed pre-existing commitments with unprecedented rigor and detail.

IV.8 Hayek's Critique: Centralized vs. Distributed Knowledge

The Rawls-Hart Paradox has an epistemic dimension that Friedrich Hayek's work illuminates.

Hayek's Central Argument: Knowledge about which institutions work is dispersed across millions of local interactions. No central planner can access this knowledge in its totality.

Prices, in economics, and traditions, in social life, encapsulate information that no single mind can hold. Attempting to design institutions from a single point, however brilliant the designer, commits what Hayek called "the fatal conceit": the belief that dispersed knowledge can be centralized and optimized.

Rawls's Assumption: A philosopher working from a privileged epistemic position (the original position) can derive principles that should govern all societies. Moral knowledge is centralizable behind a veil.

The parallel is striking. *Rawls is, in effect, a central planner of morality.* He attempts to process, through the thought experiment of the original position, all the information relevant to designing just institutions. But if Hayek is right about the nature of institutional knowledge, this cannot succeed. The information about which moral arrangements work, for which populations, in which circumstances, is dispersed across billions of local interactions and historical experiments. Rawls accesses only the intuitions of his local environment, WEIRD academia at a particular historical moment, and presents them as the full dataset from which universal principles can be derived.

The reflective equilibrium is, in this light, the moral equivalent of Soviet Gosplan: a central bureau (the philosopher) claiming to process all relevant information to generate the optimal plan (principles of justice). It fails, if it fails, for the same reason central planning fails: the relevant information is not available to the planner.

IV.9 Contemporary Corroboration: Heath on Rawlsian Persistence

A recent essay by the philosopher Joseph Heath, "The Unexpected Persistence of John Rawls" (2025), provides what I find to be inadvertent support for the hypothesis developed here. Heath writes as a defender of the Rawlsian tradition, yet several of his observations align remarkably well with the evolutionary critique.

First, Heath acknowledges that the appeal of Rawls's theory "does not reside in the fact that his concrete principles are correct or convincing." This is a striking admission from a sympathetic interpreter. If the principles themselves are not what accounts for Rawlsianism's success, what does? Heath suggests it is the "framing" or the way Rawls poses questions. From an evolutionary perspective, this is precisely what one would expect: the theory persists not because it tracks moral truth but because it fits the cognitive and institutional environment of Anglophone academic philosophy. Its fitness lies in its compatibility with WEIRD intuitions and disciplinary norms, not in its correspondence with universal reason.

Second, Heath describes the transition from *A Theory of Justice* (1971) to *Political Liberalism* (1993) as a fundamental shift in ambition. Rawls abandoned the search for "the true theory of justice" in favor of a "political" conception that could achieve "overlapping consensus" among citizens with incompatible comprehensive doctrines. This trajectory is consistent with the pattern identified in Section IV.3: when objections proved too powerful, Rawls modified not his conclusions but his epistemological claims. The difference principle survived; the assertion that it represented universal moral truth did not. What Heath presents

as intellectual maturation, the evolutionary framework interprets as strategic retreat: immunization against falsification by lowering the stakes.

Third, Heath invokes the "fact of pluralism": under conditions of freedom, the exercise of reason produces more disagreement, not less. Rawls took this as grounds for seeking principles that could transcend comprehensive doctrines while remaining neutral among them. But if Henrich's research is correct, the pluralism runs deeper than Rawls acknowledged. It is not merely that people disagree about the good life while agreeing on justice; they may disagree about what counts as a "considered intuition" in the first place. The pluralism penetrates to the inputs of reflective equilibrium, not just to comprehensive doctrines that the method is designed to bracket.

Fourth, Heath celebrates the hegemony of Rawlsian liberalism in academic philosophy while noting an irony: illiberal movements are rising in the broader society even as Rawlsianism dominates the academy. Students "arrive at university with illiberal ideas," and professors spend increasing time explaining concepts like "reasonable disagreement." Heath presents this as a puzzle. From the evolutionary perspective, it is not puzzling at all. It is exactly what the theory predicts. Rawlsianism thrives in the WEIRD niche of academic philosophy, where its presuppositions align with inhabitants' intuitions. It struggles to propagate beyond that niche, where different psychological profiles generate different intuitions. *The gap between academic hegemony and social influence is the implementation gap writ large: formal doctrine that cannot achieve traction outside its native environment.*

Fifth, Heath argues that illiberal critics are "philosophically unthreatening" because they fail to engage with "the Rawlsian challenge" of finding principles acceptable to citizens who reasonably disagree. But this framing is circular in a way that supports the present critique. The "Rawlsian challenge" presupposes that the relevant disagreements are among people who share WEIRD assumptions about the priority of abstract principles over particular relationships, about the separability of justice from comprehensive doctrines, about the possibility of an overlapping consensus among strangers. Illiberal critics may reject those presuppositions, not because they fail to understand them but because they reason from different starting points. To dismiss their views as philosophically unthreatening because they do not accept the Rawlsian frame is to exhibit precisely the parochialism the evolutionary critique identifies: treating one's own framework as the measure of seriousness rather than as one framework among several.

I do not claim that Heath's essay proves the evolutionary hypothesis correct. Heath is a sophisticated philosopher, and he may have responses to these points that I have not considered. But I find it suggestive that a defense of Rawlsian persistence, written from within the tradition, generates observations so consistent with the external critique. If the theory's appeal does not lie in the correctness of its principles; if its trajectory shows strategic modification of claims rather than convergence toward truth; if its academic success coincides with social failure; if its dismissal of critics depends on their accepting its premises, then something other than discovery of universal moral truths may be at work. The evolutionary framework offers an account of what that something might be.

V. Quantitative Evidence: Constitutional Transplants

V.1 The Natural Experiment

Legal transplants provide a natural experiment for testing claims about institutional universality. When institutions designed in WEIRD contexts are transplanted to non-WEIRD environments, what happens? If the principles underlying those institutions are genuinely universal, transplants should succeed roughly equally across receiving contexts. If the principles are WEIRD adaptations, transplants should succeed in WEIRD contexts and fail in non-WEIRD contexts.

My research program has analyzed 60+ constitutional transplants across 23 countries spanning 150 years, measuring success through what I call the IusMorfos framework. The framework assesses institutional fitness through three multiplicative factors:

Fitness = Environment × Ideology × Enforcement

Where:

- **Environment** = compatibility between institutional presuppositions and local psychology
- **Ideology** = elite commitment to transplanted principles
- **Enforcement** = capacity to implement

The multiplicative structure means each factor is necessary but insufficient. High ideology with low environmental compatibility yields low fitness; Argentina's 23 failed labor reforms exemplify this pattern. High environmental compatibility with low ideology also fails; imposed institutions without local buy-in rarely take root. Success requires alignment across all three dimensions.

The key finding: environmental compatibility predicts transplant success 1.7 times better than ideological commitment. Societies that share the psychological presuppositions embedded in transplanted institutions can make those institutions work even with moderate commitment. Societies that lack those presuppositions struggle even with strong commitment.

V.2 The Constitutional Lock-in Index

To measure institutional rigidity, I developed the Constitutional Lock-in Index (CLI), which aggregates four dimensions:

1. **Constitutional Entrenchment**: Difficulty of formal amendment (supermajority requirements, multi-stage processes, referendum requirements)
2. **Ultraactivity**: Automatic persistence of legal benefits regardless of future cooperation (acquired rights, pension guarantees, tenure protections)

3. **Judicial Protection Intensity:** Frequency and strength of court intervention to protect existing arrangements
4. **Normative Vagueness:** Interpretive ambiguity enabling judicial expansion of protections

Each dimension is scored 0-1 based on objective criteria; the CLI is the weighted average. High-CLI systems resist institutional change; low-CLI systems permit adaptation.

The CLI correlates strongly with reform outcomes:

Country	CLI Score	Reform Success Rate
Chile	0.24	78%
Brazil	0.40	65%
Spain	0.51	52%
Argentina	0.87	0% (23 attempts)

Countries with CLI above 0.50 face severe reform constraints. Argentina's CLI of 0.87-0.89 places it categorically beyond reform capacity under normal political conditions. The institutions persist not because they serve social welfare but because they resist change.

V.3 Case Comparison: Argentina vs. Chile

Argentina and Chile provide a controlled comparison for testing transplant hypotheses. Both are Latin American, Spanish-speaking, historically similar in income levels (until recent decades), and subject to similar international pressures. Both attempted labor market reforms in the 1990s using similar WEIRD-derived principles: flexibility, decentralization, reduced employment protections, individual contracting.

Chile (CLI 0.24): Reforms were implemented successfully during the 1980s under authoritarian conditions and have been maintained, with modifications, under democratic governments since 1990. Labor market flexibility is established; unemployment has been moderate; the institutions have survived multiple changes of government.

Argentina (CLI 0.87): Between 1991 and 2025, governments of various ideological stripes attempted 23 separate labor market reforms. None achieved sustained success. Each was blocked, reversed, judicially invalidated, or hollowed out through interpretation. The pre-existing labor regime, dating to the Perón era of the 1940s, remains fundamentally intact despite 34 years of reform attempts.

The difference is not ideology; both Chilean and Argentine governments at various points were strongly committed to reform. The difference is not external pressure; both faced similar IMF and World Bank conditionality. The difference is not technical design quality; both used similar templates from international best practices.

The difference, I suggest, is institutional environment. Chile's low CLI permitted adaptation; Argentina's high CLI prevented it. From an evolutionary perspective, Argentina's labor regime is highly fit in its environment. It has survived 23 attempts at elimination. Its "dysfunction" from a WEIRD efficiency standpoint is precisely its fitness advantage: it provides concentrated benefits to organized constituencies (unions, labor lawyers, labor judges) who defend it fiercely against any modification.

Rawlsian analysis, asking whether Argentina's labor regime satisfies the difference principle, misses this dynamic entirely. The regime persists not because it serves the least advantaged but because it has evolved defenses against reform. Understanding persistence requires evolutionary analysis, not normative evaluation.

VI. Toward an Evolutionary Research Program

VI.1 From Design to Selection

The Rawlsian research program asks: **What principles would rational agents choose to govern their institutions?**

An evolutionary research program asks: **What institutional arrangements survive and spread in different environments, and why?**

These questions are complementary rather than opposed. Understanding why certain institutions persist may inform efforts to change them; understanding what principles people find compelling may illuminate the cultural conditions that make them compelling. Neither question renders the other meaningless.

The evolutionary approach does not claim that whatever survives is just. That would be the naturalistic fallacy. It claims that survival has explanations in terms of fitness, and that understanding those explanations is practically useful whether or not we endorse the outcomes. A cancer researcher need not admire cancer to study how it spreads.

VI.2 Fitness Landscapes and Institutional Niches

Evolutionary biology maps fitness landscapes: multidimensional spaces where each point represents a possible phenotype and height represents reproductive success in a given environment. Peaks are local optima; valleys are maladaptive regions; ridges connect viable configurations.

Institutional analysis can adopt a similar framework. Each possible institutional configuration occupies a point in design space. Its "height" represents survival probability in a given social environment. Different environments have different fitness landscapes; what is a peak in one may be a valley in another.

Rawlsian liberalism may be a peak in the WEIRD fitness landscape: stable, self-reinforcing, and resistant to invasion by alternative configurations. Its features, including individual rights, impersonal rules, and universalist principles, are adapted to the WEIRD ecological niche: mobile strangers, market transactions, weak kinship, generalized trust.

In non-WEIRD landscapes, different configurations may occupy the peaks: stronger kinship obligations, particularist rather than universalist ethics, relationship-based rather than rule-based coordination. These are not "inferior" approximations to Rawlsian ideals but alternative adaptations to different coordination problems.

VI.3 The Limits of Archimedean Points

The deepest implication of the evolutionary critique, if it has merit, is that theory-independent evaluation may be more difficult than philosophers have hoped. Every evaluative standpoint may be somebody's extended phenotype. There may be no view from nowhere, no veil behind which pure reason operates, no considered intuitions free of cultural contamination.

This does not entail relativism in the sense that all institutions are equally good. It entails contextualism: institutions can be evaluated relative to specified environments, populations, and goals. Chilean labor institutions may be better adapted to Chilean conditions than Argentine institutions would be if transplanted. This is a conditional claim, empirically testable, not a relativist shrug.

What we may need to abandon is the ability to say that some institutions are better simpliciter, without specifying better for whom, in what environment, by what criteria. Rawlsian universalism claimed this ability; the evolutionary critique questions whether any human reasoner can achieve it.

VI.4 Popperian Gradualism and Error Correction

Karl Popper distinguished closed societies, which cannot self-correct, from open societies, which institutionalize error correction. The evolutionary framework operationalizes this distinction.

Low-CLI systems permit experimentation. Reforms can be tried, failures detected, adjustments made. The system learns from experience. High-CLI systems prevent experimentation. Bad institutions are locked in; good alternatives cannot be tested. The system cannot learn.

The Rawlsian approach to institutional design is, in this sense, anti-Popperian: derive correct principles a priori, then implement them. The evolutionary approach is Popperian: try variations, select what works, retain adaptive features, discard maladaptive ones. The first requires knowledge that may be impossible to obtain; the second requires only local feedback and adjustment capacity.

VI.5 Research Program

The evolutionary framework suggests a research program with the following features:

Descriptive: Map institutional variation across societies. Do not assume convergence toward a single model; document divergent adaptations to different environments.

Explanatory: Identify selection pressures that favor different institutional configurations. Why do WEIRD institutions thrive in WEIRD environments and struggle elsewhere? What features of non-WEIRD environments favor different arrangements?

Predictive: Develop models that predict institutional success based on environmental compatibility. The IusMorfos framework achieves preliminary accuracy of 82-87%; validation with additional cases is ongoing.

Conditionally Prescriptive: If a society seeks outcome X in environment E, institutional configuration C may be more likely to succeed than C'. This is useful guidance that does not require universal principles.

VII. Objections and Replies

VII.1 Objection: Henrich's Research is Itself WEIRD

One might argue that Henrich's framework, developed at Western universities using Western scientific methods, is itself a WEIRD product and therefore cannot escape the circularity it attributes to Rawls.

Reply: The objection conflates methods and results. The claim is not that WEIRD scientific methods are invalid but that WEIRD psychological traits, including moral intuitions, are not universal. Henrich uses scientific methods (controlled experiments, statistical analysis, peer review) to study non-WEIRD populations. The methods may be WEIRD; the data are global. The finding that WEIRD psychological traits are statistical outliers is an empirical result derived from cross-cultural comparison, not a WEIRD intuition projected onto the world.

Rawls's error, if I have identified it correctly, was not using WEIRD methods but treating WEIRD intuitions as data for universal claims. Henrich does not do this; he explicitly documents variation and warns against generalizing from WEIRD samples.

VII.2 Objection: The Critique Proves Too Much

If all evaluative standpoints are culturally contaminated, then the evolutionary critique is too, and we have no grounds for preferring it to Rawlsianism.

Reply: The evolutionary framework does not claim to be a view from nowhere. It claims to be useful for understanding and predicting institutional dynamics. Its justification is empirical success, not transcendent validity.

If Rawlsian categories predicted institutional outcomes better than evolutionary categories, that would be evidence for preferring Rawlsianism. They do not. The evolutionary framework, operationalized through IusMorfos and related tools, achieves preliminary predictive accuracy of 82-87% for constitutional transplant success; Rawlsian categories, as far as I can determine, have not been operationalized for predictive testing at all.

The comparison is not between a neutral standpoint and a biased one but between two perspectives, both culturally situated, with different empirical track records.

VII.3 Objection: Moral Progress Exists

History shows moral progress: abolition of slavery, expansion of rights, recognition of human dignity across boundaries. This progress suggests convergence toward moral truths that the evolutionary framework cannot accommodate.

Reply: The evolutionary framework can accommodate directional change without invoking transcendent truths. What appears as "progress" from a WEIRD perspective may reflect the expansion of WEIRD memes, including universalism, individual rights, and impersonal principles, across a larger portion of humanity. This expansion has causal explanations: WEIRD societies' economic and military dominance created selection pressures for adopting WEIRD institutions, whether through colonialism, conditional development aid, or the prestige of successful models.

Whether this expansion constitutes "progress" depends on which framework evaluates it. From within the WEIRD frame, it is progress. From non-WEIRD perspectives, some features of the change appear as cultural imperialism: dissolution of extended families, commodification of relationships, erosion of traditional authorities. These are not objectively inferior evaluations but alternative perspectives rooted in different memetic environments.

VII.4 Objection: The Difference Principle Helps the Worst Off

Whatever its derivation, the difference principle directs attention to the least advantaged, which seems valuable regardless of cultural context.

Reply: The question is not whether helping the disadvantaged is valuable (most moral frameworks agree on this in some form) but whether the Rawlsian mechanism for achieving this is culturally universal.

The difference principle operates through impersonal institutions: progressive taxation, means-tested transfers, regulatory regimes that constrain inequality. These are WEIRD mechanisms presupposing WEIRD psychology: willingness to pay taxes to anonymous others, trust in impersonal bureaucracies, acceptance of abstract rather than relational obligations.

Non-WEIRD societies often help their disadvantaged through different mechanisms: extended family obligations, community reciprocity, patron-client relationships, religious

charity networks. These are not failures to implement the difference principle but alternative implementations of concern for the vulnerable, adapted to different social structures.

The difference principle may be one culturally specific operationalization of a more general moral impulse. Universalizing the Rawlsian mechanism while dismissing alternatives as inferior would be WEIRD parochialism, not universal reason.

VIII. Conclusion: Complementary Perspectives

I have argued, with appropriate tentativeness, that Rawls's universalist claims may face difficulties in light of evidence unavailable to him. The veil of ignorance may not achieve the cultural neutrality it seeks. The method of reflective equilibrium may converge toward the centroid of WEIRD intuitions rather than toward principles valid for all humanity. The structural parallel with Hart's account of judicial reasoning suggests that even the most rigorous philosophical method may not escape the post-hoc rationalization it sought to transcend.

None of this diminishes Rawls's achievement. *A Theory of Justice* remains a monument of philosophical ambition and rigor, the most sophisticated attempt in the twentieth century to derive principles of justice from rational foundations. The principles it articulates may be the best available systematization of WEIRD moral psychology, which is no small accomplishment. And WEIRD moral psychology, whatever its contingent origins, has produced societies that many people, including many non-WEIRD people, find preferable to available alternatives.

But the evolutionary framework suggests a different research program, one that complements rather than replaces normative inquiry. Instead of asking which principles any rational agent would choose, we might ask which institutions actually thrive in which environments, and why. Instead of assuming universal validity, we might trace the cultural conditions that make certain principles compelling to certain populations. Instead of designing institutions from purported Archimedean points, we might study how institutional variation emerges and persists, using that knowledge to inform more realistic reform efforts.

The question I have raised is not whether Rawls was wrong, a presumptuous conclusion for someone of my limited standing in relation to one of the twentieth century's great philosophers. The question is whether the universalist framing, however intellectually satisfying, serves us well when the evidence suggests deep variation in human moral psychology. Perhaps the most we can hope for is not principles valid for all humanity but mutual understanding across difference: the recognition that others may reason from different starting points and reach different conclusions, not because they are less rational but because they are differently situated in the space of human psychological and cultural variation.

That would be a humbler aspiration than Rawls's. But it might be more achievable. And in a world of persistent moral disagreement, achievable progress may be worth more than elegant theory.

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